

SENATE No. 1678

The Commonwealth of Massachusetts

PRESENTED BY:

Peter J. Durant

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act simplifying ammunition sales.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/23/2025</i>

SENATE No. 1678

By Mr. Durant, a petition (accompanied by bill, Senate, No. 1678) of Peter J. Durant and David F. DeCoste for legislation relative to the licensing of ammunition sales. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act simplifying ammunition sales.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 34 of Chapter 135 of the Acts of 2024, is hereby amended by
2 striking it in its entirety and replacing it with the following:-

3 Section 122B. No person shall sell ammunition in the commonwealth unless duly
4 licensed. The chief of police or the board or officer having control of the police in a city or town,
5 or persons authorized by them, may, after an investigation into the criminal history of the
6 applicant to determine eligibility to be licensed under this section, grant a license to any person,
7 except an alien, a minor, a person who has been adjudicated a youthful offender, as defined in
8 section fifty-two of chapter one hundred and nineteen, including those who have not received an
9 adult sentence or a person who has been convicted of a felony in any state or federal jurisdiction,
10 or of the unlawful use, possession or sale of narcotic or harmful drugs, to sell ammunition. Every
11 license shall specify the street and number, if any, of the building where the business is to be
12 carried on. The licensing authority to whom such application is made shall cause one copy of the

13 application to be forwarded to the commissioner of the department of criminal justice
14 information services, who shall within a reasonable time thereafter advise such authority in
15 writing of any criminal record disqualifying the applicant. The fee for an application for a license
16 to sell ammunition shall be \$100, which shall be payable to the licensing authority and shall not
17 be prorated or refunded in case of revocation or denial. The licensing authority shall retain \$25
18 of the fee; \$50 of the fee shall be deposited into the general fund of the commonwealth; and \$25
19 of the fee shall be deposited in the Firearms Fingerprint Identity Verification Trust Fund. The
20 licensing authority to whom such application is made shall cause one copy of any approved
21 application to be forwarded to the commissioner of the department of criminal justice
22 information services.

23 Any lawfully incorporated sporting or shooting club shall, upon application, be licensed
24 to sell or supply ammunition for regulated shooting on their premises, as for skeet, target or trap
25 shooting; provided, however, that such club license shall, in behalf of said club, be issued to and
26 exercised by an officer or duly authorized member of the club who himself possesses a firearm
27 identification card or a license to carry a firearm and who would not be disqualified to receive a
28 license to sell ammunition in his own right. The licensing authority may revoke or suspend a
29 license to sell ammunition for violation of any provision of this chapter.

30 The secretary of the executive office of public safety may establish such rules and
31 regulations as he may deem necessary to carry out the provisions of this section.

32 Any person refused a license under this section or once issued a license under this section
33 has had said license suspended or revoked may obtain a judicial review of such refusal,
34 suspension or revocation by filing within thirty days of such refusal, suspension or revocation a

35 petition for review thereof in the district court having jurisdiction in the city or town in which the
36 applicant filed for such license, and a justice of said court, after a hearing, may direct that a
37 license be issued the applicant if satisfied there was no reasonable ground for refusing such
38 license and that the applicant was not prohibited by law from holding the same.

39 Whoever not being licensed, as hereinbefore provided, sells ammunition within the
40 commonwealth shall be punished by a fine of not less than five hundred nor more than one
41 thousand dollars or by imprisonment for not less than six months nor more than two years.

42 SECTION 2. Section 3 of Chapter 135 of the Acts of 2024 is hereby repealed.